RESOLUTION NO. 2026-4

RESOLUTION OF THE TULELAKE MULTI-COUNTY FIRE PROTECTION DISTRICT BOARD OF DIRECTORS CALLING A GENERAL ELECTION TO SUBMIT TO THE VOTERS OF THE DISTRICT PROPOSING THE ADOPTION OF A SPECIAL TAX INCREASE AND REQUESTING THE BOARD OF SUPERVISORS OF SISKIYOU COUNTY AND THE BOARD OF SUPERVISORS OF MODOC COUNTY TO CONSOLIDATE THE DISTRICT'S GENERAL ELECTION WITH THE STATEWIDE ELECTION TO BE HELD ON NOVEMBER 3, 2026, AND TO RENDER SPECIFIED ELECTIONS SERVICES TO THE DISTRICT PURSUANT TO SECTIONS 10002 & 10403 OF THE CALIFORNIA ELECTIONS CODE

WHEREAS, pursuant to its rights and authority under State law, the Board of Directors of the Tulelake Multi-County Fire Protection District ("District") may call a General Election to be held in the District on November 3, 2026, for the purpose of submitting a ballot measure to the voters of the District; and

WHEREAS, pursuant to the authority set forth at Section 53978 of the California Government Code, and Sections 133911 & 13913 of the California Health & Safety Code, and other applicable laws, following published notice and a public hearing the District Board of Directors did, on August 7, 2026, adopt an ordinance imposing an increase to the existing special parcel tax for the purpose of maintaining and improving fire protection and prevention services, as attached hereto as Exhibit "A", and ordering that the ordinance shall be adopted and become effective upon a two-thirds approval of the voters of the District voting thereon at an election to be held on November 3, 2026, as follows:

(a) $50 per parcel for unimproved parcels;

(b) $100 per parcel for improved parcels;

(c) $150 per business commercial occupancies per assessor's parcels so occupied; and

WHEREAS, pursuant to California Elections Code Sections 10002 & 10403 the District Board of Directors may request from the Board of Supervisors of both Siskiyou County and Modoc County that the District's General Election be consolidated with the Statewide Election to held on November 3, 2026, and that both the Siskiyou County Board of Supervisors and the Modoc County Board of Supervisors permit their respective County Registrar of Voters to render specified services to the District relating to the conduct of an election; and

NOW, THEREFORE, THE BOARD OF DIRECTORS OF THE TULELAKE MULTI-COUNTY FIRE PROTECTION DISTRICT DOES RESOLVE, DECLARE, DETERMINE AND ORDER AS FOLLOWS:

1. A District General Election shall be and is hereby ordered to be held in the Tulelake Multi-County Fire Protection District on November 3, 2026, at which election

there shall be submitted to the qualified electors of the District the question of imposition of a special parcel tax for maintaining and improving fire protection and prevention services which shall appear and be printed on the ballot to read as follows:

> "Shall an ordinance of the Tulelake Multi-County Fire Protection District imposing an annual special parcel tax to maintain and improve fire protection and prevention services in the amount of $50 per parcel for unimproved parcels, $100 per parcel for improved parcels, and $150 for commercial parcels for each business occupancy, estimated to raise approximately $106,250 annually, which shall continue until repealed by the voters, be adopted?
>
> YES _____
>
> NO _____"

2. The Siskiyou County and Modoc County Registrar of Voters are each directed to give notice of the District General Election as required by law.

3. The District General Election called by this resolution shall be consolidated with the Statewide Election to be held throughout both Siskiyou County and Modoc County on November 3, 2026, and the General Election called herein, and the Statewide Election be held in all respects as if there were only one election.

PASSED AND ADOPTED by the Tulelake Multi-County Fire Protection District Board of Directors, State of California, this 7th day of August 2026, by the following vote:

AYES: 4
NOES: 0
ABSENT: 1
ABSTAIN:

John Prosser, Chair of the Board of Directors
Tulelake Multi-County Fire Protection District

ATTEST:
Jeffrey Boyd,
Secretary, of the Board of Directors

By _____

ORDINANCE NO. 26-01

AN ORDINANCE OF THE TULELAKE MULTI-COUNTY FIRE PROTECTION DISTRICT IMPOSING A SPECIAL PARCEL TAX INCREASE FOR THE PURPOSE OF MAINTAINING AND IMPROVING FIRE PROTECTION AND PREVENTION SERVICES

WHEREAS, pursuant to the authority of Sections 13911 and 13913 of the California Health and Safety Code, Sections 50075 et seq, and 53978 of the California Government Code, and other applicable law, the Tulelake Multi-County Fire Protection District ("District") has the authority to levy a special parcel tax following published notice and a public hearing; and

WHEREAS, on November 3, 1987, the voters of the Tulelake Multi-County Fire Protection District approved by a two-thirds (2/3) vote of the voters in the District an ordinance imposing an annual special parcel tax on unimproved parcels, improved parcels and business commercial parcels as follows:

(a) $15 per parcel for unimproved parcels;

(b) $25 per parcel for improved parcels;

(c) $50 per business commercial occupancies per assessor's parcels so occupied; and

WHEREAS, since November 3, 1987, the cost of providing fire protection and prevention services has significantly increased; and

WHEREAS, the District Board of Directors desires to increase the existing special parcel tax levy for the purpose of maintaining and improving fire protection and prevention services to the District's residents.

NOW, THEREFORE, THE BOARD OF DIRECTORS OF THE TULELAKE MULTI-COUNTY FIRE PROTECTION DISTRICT DOES ORDAIN AS FOLLOWS:

Section 1. Authority, Purpose and Intent. Pursuant to the authority of Sections 13911 and 13913 of the California Health and Safety Code, Sections 50075 et seq, and 53978 of the California Government Code, and other applicable law, there is hereby levied and assessed a special parcel tax by the Tulelake Multi-County Fire Protection District ("District") on all unimproved parcels, improved parcels, and commercial parcels of real property in the Tulelake Multi-County Fire Protection District for each fiscal year. It is the sole purpose and intent of this Ordinance to impose a special parcel tax for the specific purpose of maintaining and improving fire protection and prevention services within the District.

Section 2. Special Parcel Tax Imposed. A special parcel tax for the purpose specified in Section 6 of this Ordinance shall be imposed annually on all parcels of real property within the Tulelake Multi-County Fire Protection District boundaries for each fiscal year (the period beginning July 1 and ending the following June 30), commencing with fiscal year 27/28. The following annual maximum amount of the special parcel tax for each fiscal year is hereby imposed on real property within the boundaries of the District in accordance with the schedule below:

(a) Unimproved parcels in the sum of $50 per parcel; and

(b) Improved parcels in the sum of $100 per parcel; and

(c) Commercial parcels in the sum of $150 for each business occupancy.

The records of the Siskiyou County Assessor and the Modoc County Assessor as of January 1st of each year or such other date established by the District Board of Directors, shall be used to determine the land use category for each parcel for the calculation of the special parcel tax applicable to that parcel in the following fiscal year, with such corrections as deemed necessary.

Section 3. Definitions. For the purposes of this Ordinance, the following terms shall have the following meanings:

(a) "Parcel" shall mean a parcel of real property having a separate assessor's parcel number as shown on the last equalized assessment roll of Siskiyou County or Modoc County.
(b) "Unimproved" shall mean any vacant land or unimproved property for which no structure is located as reflected by the last equalized assessment roll of Siskiyou County or Modoc County.
(c) "Improved" shall mean any parcel with a structure or other activity which constitutes an improvement to the parcel of land as reflected by the last equalized assessment roll of Siskiyou County or Modoc County.
(d) "Commercial" shall mean commercial, business or institutional uses including but not limited to stores and retail businesses (less than 10,000 square feet), offices, restaurants and bars, service stations, auto repair, hotels, motels, day care facilities, professional business parks, and similar uses as reflected by the last equalized assessment roll of Siskiyou County or Modoc County.
(e) "Business Occupancy" shall mean any portion of any building or structure, or other improved property occupied or designed to be occupied by a business enterprise other than the agricultural enterprise of growing crops or livestock as reflected by the last equalized assessment roll of Siskiyou County or Modoc County.

Section 4. Cumulative Effect. The above special parcel tax rates shall be cumulative, so that the special parcel tax is the basic special tax and that the commercial special tax rates shall be imposed in addition thereto.

Section 5. Annual levy. The Board of Directors of the District shall annually, by an affirmative vote of at least a majority of its members, establish the amount of the special parcel tax levy, in an amount that does not exceed the maximum amount specified in Section 2 of this Ordinance. The special parcel tax shall not be measured by the value of property.

Section 6. Special Fund, Use of Tax Proceeds. The proceeds of the special parcel tax imposed by this Ordinance shall be placed in a special fund, which shall be created and designated the Tulelake Multi-District Fire Protection District Parcel Tax Special Fund, and shall be applied only for the purpose of maintaining and improving fire protection and prevention services, emergency rescue services, emergency medical services, ambulance services, hazardous materials emergency response services, including providing the necessary personnel, the construction, acquisition, maintenance and replacement of necessary facilities, apparatus, equipment, gear, and vehicles, and any related services, as required by California Government Code Section 50075.1, as such law may be amended from time to time.

Section 7. Collection. The special parcel tax imposed by this Ordinance shall be collected in the same manner, on the same dates, and shall be subject to the same penalties and interest as

other charges and taxes fixed and collected by Siskiyou County and Modoc County on behalf of the District. The Siskiyou County and Modoc County Tax Collectors may deduct reasonable administrative costs incurred in collecting the special parcel tax before remittal of the balance to the District. The special parcel tax, together with all penalties and interest thereon, shall constitute a lien upon the parcel upon which it is levied until it has been paid, and said special parcel tax, together with all penalties and interest thereon, shall, until paid, to the extent authorized by law, constitute a personal obligation to the District by the persons who own the parcel on the date the tax is due.

Section 8. Amendment and Implementation. The Board of Directors of the District shall be empowered, by an affirmative vote of at least a majority of its members, to amend this Ordinance to carry out the general purposes of this Ordinance, to conform the provisions of this Ordinance to applicable state law or any paramount law, to modify the methods of collection, or to assign the duties of public officials under this Ordinance. In no event shall the Board of Directors of the District amend this Ordinance to increase the maximum amount of the special parcel tax established in section 2 of this Ordinance, unless approved by two-thirds of the voters voting thereon. The Board of Directors of the District, by resolution, may adopt procedures or definitions for the implementation or administration of the special parcel tax.

Section 9. Exemptions. The special parcel tax shall not be imposed upon any parcel that is exempt from the special parcel tax pursuant to any provision of the United States Constitution, California Constitution, California State law, or any paramount law. The Board of Directors of the District, by resolution, may adopt additional exemptions to the special parcel tax imposed by this Ordinance.

Section 10. Annual Report. The District chief fiscal officer shall prepare and annually file with the District Board of Directors a report regarding the amount of special parcel tax revenues collected and expended and the status of any project required or authorized to be funded with the special parcel tax revenues, as required by California Government Code Sections 50075.1 & 50075.3, as such law may be amended from time to time.

Section 11. Independent Audit. An independent third-party auditor shall perform regular audits at least annually to endure accountability and proper disbursement of all revenue collected by the District from the Special Parcel Tax imposed by this Ordinance, in accordance with the objectives stated and in compliance with provisions of California law.

Section 12. Severability. If any provision of this Ordinance or the application thereof to any person or circumstances is held invalid or unconstitutional by any court of competent jurisdiction, such invalidity or unconstitutionality shall not affect any other provision or applications, and to this end the provisions of this Ordinance are declared to be severable. The Board of Directors of the District, and the electorate by referendum, do hereby declare that they would have adopted this Ordinance and each section, subsection, sentence, clause, phrase, part or portion thereof, irrespective of the fact that any one or more sections, subsections, clauses, phrases, parts or portions thereof, be declared invalid or unconstitutional.

Section 13. Title. This Ordinance may be cited as "The Tulelake Multi-County Fire Protection District Special Parcel Tax Ordinance of 2026."

Section 14. Effective Date. This Ordinance shall be adopted and become effective only if approved by two-thirds of the voters voting thereon, at an election to be held on November 3, 2026.

Section 15. Duration of Special Parcel Tax. The authority to levy the special parcel tax shall remain in effect unless a later ordinance is adopted and approved by two-thirds of the voters of District voting thereon that either repeals the special parcel tax or establishes a date that the authority to levy the special parcel tax shall terminate.

PASSED AND ADOPTED by the Tulelake Multi-County Fire Protection District Board of Directors, State of California, this 7th day of August 2026, by the following vote:

AYES: 4

NOES: 0

ABSTAIN: 1

ABSENT:

John Prosser, Chair of the Board of Directors

Tulelake Multi-County Fire Protection District

ATTEST:

Jeff Boyd,

Secretary, of the Board of Directors

By